Japanese-American Internment — EO 9066 & Korematsu v. US

Executive Order 9066 (Feb. 19, 1942) & Korematsu v. United States, 323 U.S. 214 (1944)

Source: Executive Order 9066 (U.S. National Archives, Milestone Documents) and Korematsu v. United States, 323 U.S. 214 (1944) (Cornell Legal Information Institute). Public domain.

Roosevelt's Executive Order 9066, issued ten weeks after Pearl Harbor, authorized the military to designate 'exclusion zones' from which any persons could be removed. The army used it to forcibly relocate about 120,000 Japanese Americans — two-thirds U.S. citizens — to internment camps for the duration of the war. In Korematsu (1944), a 6-3 Supreme Court upheld the relocation as a wartime measure. Justice Murphy's dissent named the order what it was: 'the ugly abyss of racism.' Congress formally apologized in 1988 and paid reparations to surviving internees.

Connect: Korematsu's 'wartime necessity' argument echoes Lincoln's suspension of habeas corpus (Class 22) and the WWI Espionage Act (Class 38). What's the pattern of civil liberties in wartime?

Key Passages

EO 9066

I hereby authorize and direct the Secretary of War, and the Military Commanders whom he may from time to time designate, whenever he or any designated Commander deems such action necessary or desirable, to prescribe military areas in such places and of such extent as he or the appropriate Military Commander may determine, from which any or all persons may be excluded.

Korematsu — Justice Black, for the majority

We uphold the exclusion order as of the time it was made and when the petitioner violated it. … Korematsu was not excluded from the Military Area because of hostility to him or his race. He was excluded because we are at war with the Japanese Empire, because the properly constituted military authorities feared an invasion of our West Coast and felt constrained to take proper security measures

Korematsu — Justice Murphy, dissenting

This exclusion of 'all persons of Japanese ancestry, both alien and non-alien,' from the Pacific Coast area on a plea of military necessity in the absence of martial law ought not to be approved. Such exclusion goes over 'the very brink of constitutional power' and falls into the ugly abyss of racism.

Korematsu — Justice Jackson, dissenting

But once a judicial opinion rationalizes such an order to show that it conforms to the Constitution, or rather rationalizes the Constitution to show that the Constitution sanctions such an order, the Court for all time has validated the principle of racial discrimination in criminal procedure and of transplanting American citizens. The principle then lies about like a loaded weapon ready for the hand of any authority that can bring forward a plausible claim of an urgent need.

HIPP Analysis

Model answers fill the first three rows. Use them to explain the author's Purpose in the last row.

HIPP Element	Your Analysis
Historical Situation *What was happening when this was written?*	After Pearl Harbor, fear of Japanese spies and long-standing anti-Asian prejudice on the West Coast led to the removal of Japanese Americans.
Intended Audience *Who was the source written for?*	EO 9066: military commanders and the public. Korematsu: the parties, government, and nation; the dissents spoke to future readers.

HIPP Element	Your Analysis
Point of View *Whose perspective? Whose is missing?*	EO: President Roosevelt and military leaders, focused on security. Majority: Justice Black, deferring in wartime. Dissent: Murphy, who saw racism; Japanese Americans' voices are absent.
Purpose *What did the author want to accomplish?*	

Analysis Prompts

1. HIPP — internment documents: Identify TWO different audiences for EO 9066 and explain how the wording serves each.
2. Why did the Court — including liberal justices — uphold internment in 1944?
3. Compare Korematsu (1944) with the Civil Liberties Act (1988). What changed?